

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202303322	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/05/2023 10:46 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/5/2024	Precinct: 32		
Date/Time CV Reported Wed, 04/05/2023 10:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/17/2023 1:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Fernando Rodriguez	06928	954282	NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ramon Santos	29193	937492	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Fernando Rodriguez	Discourtesy: Detective Fernando Rodriguez spoke discourteously to § 87(2)(b)	A . Unable to Determine
B . DT3 Fernando Rodriguez	Off. Language: Detective Fernando Rodriguez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	B . Unable to Determine
C . DT3 Fernando Rodriguez	Abuse: Detective Fernando Rodriguez refused to provide his name to § 87(2)(b)	C . Unable to Determine

Case Summary

On April 5, 2023, § 87(2)(b) called 911 and was transferred to IAB to file the following complaint, generating IAB log number 2023-10985. On April 17, 2023, IAB referred this complaint to the CCRB.

On April 5, 2023, at approximately 10:46 p.m., outside of § 87(2)(b) in Manhattan, § 87(2)(b) interacted with Det. Fernando Rodriguez and PO Ramon Santos, both of Manhattan North Narcotics. Det. Rodriguez allegedly said to § 87(2)(b) “Get back in your fucking car” and, “You’re a pussy” (**Allegation A Discourtesy and Allegation B: Offensive Language, unable to determine**). § 87(2)(b) then asked Det. Rodriguez for his name and he allegedly refused to provide it (**Allegation C: Abuse of Authority, unable to determine**). Officers then left the scene.

No summons or arrest resulted from this incident. The investigation is in possession of § 87(2)(b) security footage that captures this incident (**BR 01**). The investigation is not in possession of any additional video.

On July 24, 2023, this complaint was reassigned from Investigator Dylan Brenner to Supervising Investigator Carter Garfield.

Findings and Recommendations

Allegation (A) Discourtesy: Detective Fernando Rodriguez spoke discourteously to § 87(2)(b)

Allegation (B) Offensive Language: Detective Fernando Rodriguez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Fernando Rodriguez refused to provide his name to § 87(2)(b)

§ 87(2)(b) (**BR 02**) stated § 87(2)(b) was about to back into a parking spot when a vehicle pulled up behind him and took the parking spot. § 87(2)(b) did not know initially if the vehicle was a police vehicle, as it was an unmarked Kia, but when he exited his vehicle they activated their police lights. § 87(2)(b) asked the officers what was going on and an officer (identified by the investigation as Det. Rodriguez) told § 87(2)(b) “Get back in the fucking car” twice and said, “You’re a pussy.” § 87(2)(b) then called 911 and told them that Det. Rodriguez was threatening him. He then shouted for his girlfriend, § 87(2)(b) who was in his apartment, to come downstairs.

The other officer in the vehicle (identified by the investigation as PO Santos) spoke to § 87(2)(b) and told her that he was only dropping Det. Rodriguez off and did not intend to park there. § 87(2)(b) then asked Det. Rodriguez for his name and Det. Rodriguez ignored him, instead walked away § 87(2)(b) PO Santos followed Det. Rodriguez inside but exited shortly afterward, alone, and drove away in the unmarked vehicle.

§ 87(2)(b) (**BR 03**) stated that § 87(2)(b) called her and told her to come outside and when she did, she saw Det. Rodriguez “screaming” at § 87(2)(b) who was in his car on the phone with 911, while PO Santos was trying to deescalate the situation by “playing peacemaker.” She said the officer’s vehicle was parking in front of, but not in, a parking spot outside the building. Det. Rodriguez told § 87(2)(b) that they were not parking there but simply dropping him off. § 87(2)(b) did not hear Det. Rodriguez tell § 87(2)(b) to, “Get back in the fucking car” nor did she hear him call § 87(2)(b) a “pussy.” She heard § 87(2)(b) ask both officers for their names and only PO Santos provided it.

Det. Rodriguez (**BR 04**) testified that PO Santos drove him § 87(2)(b) and double-parked outside to allow him to exit and collect his belongings, as he was ending his tour. He

did not realize that PO Santos was blocking an available parking spot and that § 87(2)(b) was attempting to park there. § 87(2)(b) exited his vehicle at the same time as Det. Rodriguez and began yelling and cursing at officers. He could not recall any specific statements made by § 87(2)(b) but did not believe he made any threatening statements. He did not tell § 87(2)(b) to, “Get back in the fucking car” nor did he call him a “pussy.” PO Santos activated their police lights to let § 87(2)(b) know they were officers, as they were in plainclothes. He told § 87(2)(b) that they were not trying to park their vehicle but § 87(2)(b) did not listen to him. § 87(2)(b) arrived on scene at one point. Det. Rodriguez left the area as he was there only to be dropped off and believed the situation would deescalate if he left and PO Santos drove away. Det. Rodriguez did not recall § 87(2)(b) requesting for his name. Det. Rodriguez did not refuse to provide his name to § 87(2)(b).

PO Santos (BR 05) § 87(2)(g) He did not hear Det. Rodriguez say, “Get back in the fucking car” or call § 87(2)(b) a “pussy” at any point during this incident. He did not recall § 87(2)(b) requesting any officer for information nor did he recall Det. Rodriguez refusing to provide his name at any point.

The investigation obtained the log of § 87(2)(b)'s 911 call (BR 06) in which § 87(2)(b) reports that two males in vehicle § 87(2)(b) are possibly impersonating officers. At the end of the call, § 87(2)(b) stated that he was threatened. The call was then transferred to IAB. The investigation obtained § 87(2)(b)'s call to IAB (BR 07) which is consistent with his statement to the CCRB.

§ 87(2)(b) footage § 87(2)(b) captures this incident but does not contain audio. At 16:00, a white sedan (§ 87(2)(b)'s vehicle) attempts to reverse into an open spot while a grey sedan (Det. Rodriguez and PO Santos' vehicle) stops behind § 87(2)(b)'s vehicle, blocking the parking spot. At 16:20, § 87(2)(b) exits the driver's seat of the white sedan as Det. Rodriguez exits the grey sedan from the front passenger seat. The police lights on the grey sedan turn on immediately after. § 87(2)(b) approaches the police vehicle and is pointing at the parking spot. He then walks back to his vehicle. PO Santos exits from the driver's side of the police vehicle. Det. Rodriguez, PO Santos, and § 87(2)(b) appear to engage in conversation for about a minute. § 87(2)(b) walks into frame into the parking spot at 18:50. At 19:10, Det. Rodriguez walks over to § 87(2)(b) and appears to engage in conversation with her. All four appear to engage in conversation until 20:50, when PO Santos gets back into his vehicle and backs up his RMP. At 21:34, § 87(2)(b) gets back into his vehicle and parks in the parking spot.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that Allegations A, B, and C be closed as **unable to determine**.

Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) has been a party (BR 08).
- Det. Rodriguez has been a member of service for ten years and has been listed as a subject in six CCRB complaints and 24 allegations, three of which were substantiated.
 - 201501745 involved substantiated allegations of a question and of a retaliatory summons against Det. Rodriguez. The Board recommended and the NYPD imposed Command Discipline B.
 - 201510852 involved a substantiated allegation of discourtesy against Det. Rodriguez. The Board recommended Formalized Training and the NYPD imposed Command Discipline A.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On September 6, 2023, a FOIL request for any Notice of Claim pertaining to this incident was filed with the Office of the Comptroller and will be added to the case file upon receipt (**BR 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

§ 87(2)(g)
[REDACTED]

■ [REDACTED].

Squad: 16

Investigator:	<u>Carter Garfield</u>	<u>SI Garfield</u>	<u>9/20/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>09/20/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date